

Skyscanner Affiliate Partner Services Terms



The Customer and Skyscanner (Each a **“Party”** and together the **“Parties”**) have agreed that from the Effective Date, and in consideration of the agreed Customer Payment, Skyscanner shall provide such Affiliate Partner Services to the Customer as are selected by the Customer (or in the case of API Services, are applied for by the Customer and accepted by Skyscanner) in accordance with the Affiliate Partner Services Terms (the **“Terms”**), the Cashback Terms and Conditions (where applicable), the Anti-Bribery Code of Conduct available at <http://www.skyscanner.net/media/anti-bribery-code-skyscanner> and the Modern Slavery Policy available at <https://www.skyscanner.net/legal-notice/modern-slavery/>, all of which are incorporated herein and may be updated from time to time. By accepting these Terms the Customer acknowledges and agrees that it has read them and will abide by them.

1. DEFINITIONS

In this Agreement the following definitions shall apply:

1.1 **“Affiliate Partner Services”** means the API Services, the Widget Services and the Referral Marketing Services provided by Skyscanner to the Customer as agreed in writing (for the purposes of this definition including by email) between the Parties from time to time;

1.2 **“Agreement”** means the Terms, the agreed Customer Payment and any other terms and conditions the Customer is required to enter into by Skyscanner from time to time in order that Skyscanner can continue to provide the Affiliate Partner Services to the Customer;

1.3 “**API Key**” means the unique access key(s) provided to the Customer upon registering for the API Services via the Skyscanner Site;

1.4 “**API Services**” means Skyscanner’s proprietary software, data and content API service as updated from time to time which provides the Customer with direct access to the Travel Data;

1.5 “**Booking**” means a reservation based on the confirmed purchase of a travel service or travel related options made by an End-User following and as a result of an End-User Click;

1.6 “**Cashback Site**” means any Customer Site which pays End-Users a fixed fee per purchase or a percentage of the total purchase price of goods or services purchased by an End-User via the Customer’s affiliate partners;

1.7 “**Click Through Revenue**” means the estimated revenue generated by Skyscanner as a direct result of End-User Clicks;

1.8 “**Confidential Information**” means the existence and content of this Agreement and all information which a Party may have or acquire before or after the date of the Agreement which relates to a Party’s business, products, developments, trade secrets, know-how or other matters connected with the Affiliate Partner Services and information concerning a Party’s relationships with actual or potential clients, customers or suppliers and all other information designated as confidential or which ought reasonably to be considered confidential;

1.9 “**Consumer Links**” means the hyperlinks to Skyscanner’s privacy policy, terms of service and “contact us” page, all of which are embedded in the Widget Services;

1.10 “**Conversion**” means (i) a Booking where Skyscanner is able to track the End-User Click accurately to the relevant Booking or (ii) the End-User Click in the instance where Skyscanner is not able to track the End-User Click accurately to the relevant Booking;

1.11 “**Customer Brands**” means the Intellectual Property Rights in any branding, trade names, trade marks or get-up owned by or licensed to the Customer, as notified by Customer to Skyscanner;

1.12 “**Customer Integration**” has the meaning given to it in clause 1.25;

1.13 “**Customer Payment**” is those monies payable by Skyscanner to the Customer in respect of the Affiliate Partner Services as agreed between the parties from time to time through the online portal facilitated by Skyscanner or otherwise in writing;

1.14 “**Customer Site**” means the Customer operated website(s) at the URL notified to Skyscanner via the online portal, or any geographical variance, and any Customer

applications for use on mobile devices which incorporate the same or similar functionality and/or content, or any other website agreed between the parties in writing (including by email) from time to time;

1.15 **“Effective Date”** shall mean the date these Terms are accepted by the Customer;

1.16 **“End-User”** means any human end-user of the Customer Site;

1.17 **“End-User Clicks”** means the referral of an End-User from the Customer Site to the Skyscanner Site or any Travel Partner’s site;

1.18 **“Implementation Period”** means the period commencing on the Effective Date and ending on the date on which the Customer Integration is made available to the public, during which period the Skyscanner Services shall be delivered only to the extent reasonably necessary for Customer to implement the applicable Affiliate Partner Services on the Customer Site;

1.19 **“Insolvency Event”** means (i) a Party suspends, or threatens to suspend, its business or payment of its debts, or is unable to pay its debts as they fall due; or (ii) a Party commences negotiations with all or any class of its creditors with a view to rescheduling any of its debts; or (iii) steps are taken by a Party or a third party, towards the winding up of a Party or the appointment of an administrator; or (iv) any event occurs, or proceeding is taken, with respect to a Party in any jurisdiction to which it is subject that has an effect equivalent or similar to any of the events mentioned herein; or (v) in the case of the Customer, Skyscanner is of the reasonable opinion that the Partner is unable to, or has no prospect of, fulfilling its material financial obligations to any third party.

1.20 **“Intellectual Property Rights”** means patents, rights to inventions, copyright and related rights, moral rights, trade marks and service marks, trade names and domain names, rights in get-up, rights to goodwill or to sue for passing off or unfair competition, rights in designs, rights in computer software, database rights, rights in confidential information (including know-how and trade secrets) and any other intellectual property rights, in each case whether registered or unregistered and including all applications (or rights to apply) for, and renewals or extensions of, such rights and all similar or equivalent rights or forms of protection which subsist or will subsist now or in the future in any part of the world;

1.21 **“Invalid Transactions”** means any End-User Click, Booking or Conversion, which in Skyscanner’s reasonable opinion is generated by any automated, deceptive or fraudulent means (including without limitation, electronic web ‘bots’ or ‘spiders’) or from a Customer Integration which does not meet the Permitted Purpose Requirements.

1.22 **“Loss”** means any losses, liabilities, costs (including without limitation reasonable legal costs), charges, damages, expenses, actions, proceedings, claims and demands;

1.23 **“Permitted Purpose”** means where Skyscanner is providing the API Services the purpose of the Customer integrating the Travel Data into, and displaying Travel Data to End-Users at no charge via a meta-search service on the Customer Site (**“Customer Integration”**) including: (i) search functionality allowing End-Users to search for available travel or travel-related options and prices from the Travel Data; (ii) presenting the results of such searches to End-Users in a format that allows End-Users to compare and filter available travel or travel related options and prices; (iii) allowing End-Users to select a travel or travel-related option and to make an End-User Click to the relevant travel provider’s site via the Skyscanner deeplink mechanism or via the Skyscanner Site; and (iv) conforming to any other requirements notified to the Customer by Skyscanner from time to time; where Skyscanner is providing the Widget Services enabling End-Users to access Travel Data from the Customer Site via the Widget and where Skyscanner is providing the Referral Marketing Services referring traffic to the Skyscanner Site from content on the Customer Site in accordance with these terms and conditions.

1.24 **“Redirect Revenue”** means the estimated revenue generated by Skyscanner for each Conversion;

1.25 **“Referral Marketing Services”** means the service provided by or on behalf of Skyscanner which tracks the referral of End-Users from specific content on the Customer Site to the Skyscanner Site or its Travel Partners’ websites

1.26 **“Revenue Model”** means Redirect Revenue, Revenue per Stay and Click-Through Revenue and any other model of calculating revenue that Skyscanner may use from time to time;

1.27 **“Revenue per Stay”** means the estimated revenue generated by Skyscanner for each Conversion which relates to a hotel Booking, where the hotel stay associated with such Booking has been completed in full;

1.28 **“Skyscanner Cookie Policy”** shall mean Skyscanner’s cookie policy as amended from time to time, available at www.skyscanner.net/cookiepolicy.aspx;

1.29 **“Skyscanner Group Company”** means Skyscanner and any entity that directly or indirectly controls, is controlled by, or is under common control with Skyscanner;

1.30 **“Skyscanner Link”** means the Skyscanner logo and hyperlink which includes the text “Powered by Skyscanner”;

1.31 **“Skyscanner Marks”** means the words “Skyscanner”, “Tianxun” or any other trade marks, trade names or brand names of any Skyscanner Group Company in any language or any variations thereof;

1.32 **“Skyscanner Site”** means the website located at the URL www.skyscanner.net (or any other URL which replaces this URL or is used in addition to target specific

geographic markets) and any Skyscanner applications for use on mobile devices which incorporate the same or similar functionality and/or content;

1.33 “**Skyscanner Technical Requirements**” means any technical or design requirements relating to the Customer Integration or use of the Affiliate Partner Services, as may be notified to Customer by Skyscanner from time to time; and

1.34 “**Travel Data**” means flight prices, route data and other information relating to available flights and other travel, or travel-related options, and prices for those options, including without limitation car hire, hotels, insurance, rail travel, bus travel and parking;

1.35 “**Travel Partner**” means any third party which provides Travel Data to Skyscanner; and

1.36 “**Widget Services**” means a proprietary software, data and content service as updated from time to time and any other ancillary, derivative or similar product which is provided to the Customer by Skyscanner under this Agreement and which allows the Customer to include travel results and data powered by Skyscanner on the Customer Site via a widget / code snippet.

2. USE OF THE AFFILIATE PARTNER SERVICES

2.1 To the extent that Skyscanner is providing any Affiliate Partner Service to the Customer:

2.1.1 Skyscanner reserves the right to suspend or remove any Customer from receiving the relevant Affiliate Partner Service (and if applicable reverse or cancel its Customer Payment) in the instance where a Customer drives over 250 End-User Clicks from the Skyscanner Site to a Travel Partner’s website which does not result in a single Booking;

2.1.2 where an End-User Click cannot be attributed to a Booking, Skyscanner reserves the right not to pay any Customer Payment to a Customer when the average ration between Bookings and End-User Clicks is below or equal to 0.5 per cent of Bookings per 250 redirects; and

2.1.3 Skyscanner may change the Affiliate Partner Services at any time in its absolute discretion, including, but not limited to, suspending access to the Affiliate Partner Services, and limiting or altering the style.

2.2 To the extent that Skyscanner is providing the Customer with API Services, subject to the Implementation Period and Skyscanner approving the proposed Customer Integration, Skyscanner shall from the Effective Date provide the API Services to the Customer for the Permitted Purpose.

2.3 To the extent Skyscanner is providing the Customer with Widget Services:

2.3.1 Skyscanner shall endeavour to provide product support, which is available to Customer via an online form available at <https://support.business.skyscanner.net/hc/en-us/requests/new>;

2.3.2 Skyscanner permits the Customer to:

(a) integrate the Service into the Customer Site by adding HTML integration code in accordance with the directions of Skyscanner as displayed on the Customer Site from time to time;

(b) use the Service to display travel and route data including flight, hotel and car-hire data and other information provided by Skyscanner on the Customer Site in the same manner, form, format and appearance as is provided by the Service; and

(c) use 'cascading style sheet' (CSS) files as described on the Skyscanner Site to tailor the look and feel of the Service, provided that the Customer does not:

(i) alter the underlying HTML code or functionality of the Widget Services;

(ii) combine the Widget Services (or any component part of the Widget Services) with other data or information to form a new service of any kind; or

(iii) make or include any changes that would lead an End-User to believe the Widget Services are offered by anyone other than the parties to these Terms.

2.4 To the extent Skyscanner is providing the Customer with Referral Marketing Services:

2.4.1 Customer's email marketing content and creative content directing traffic to Skyscanner's Site must be approved by Skyscanner in advance.

2.4.2 where the Customer is a Cashback Site, Skyscanner will require the Customer to agree to the Cashback Terms and Conditions.

3. RESTRICTIONS AND UNAUTHORISED ACTIVITIES

3.1 In respect of any Affiliate Partner Services provided by Skyscanner to the Customer, the Customer shall:

3.1.1 use the Affiliate Partner Services and the Travel Data for the Permitted Purpose only and not in connection with or to promote any products, services or materials that

constitute, promote or are used for the purpose of dealing in: spyware, adware, or other malicious programs or code; counterfeit goods; unsolicited mass distribution of email; multi-level marketing proposals, hate materials, content that discriminates on the grounds of sex, gender, nationality, ethnicity, religion, belief or any other protected characteristic, hacking/ phishing/ surveillance/ interception/ descrambling equipment, libellous, defamatory, obscene, pornographic, abusive, violent or otherwise offensive content, prostitution, body parts and bodily fluids, stolen products and items used for theft, fireworks, explosives, and hazardous materials, government IDs, police items, gambling, or weapons and accessories;

3.1.2 not in any way directly or indirectly damage, interfere with or disrupt the Affiliate Partner Services, the Travel Data or any other products or services offered or made available by Skyscanner, or introduce into the Affiliate Partner Services or the Travel Data, or transmit in any way, any spyware, virus, worm, Trojan horse, authorisation key, licence control utility or software lock;

3.1.3 comply with all laws and regulations when using the Affiliate Partner Services and Travel Data and not use the Affiliate Partner Services or Travel Data for illegal or illegitimate purposes;

3.1.4 procure that appropriate security measures (including, without limitation, bot-detection software) are in place at all times to ensure that Travel Data cannot be consumed by any third party websites or scanned, copied, indexed, sorted or otherwise exploited by any third party automated computer program or application and where the Customer becomes aware of such activity occurring, it must inform Skyscanner immediately; and

3.1.5 not use the Affiliate Partner Services or Travel Data in any manner whatsoever that may prejudice or damage Skyscanner's business.

3.2 To the extent Skyscanner is providing the Customer with API Services, the Customer shall:

3.2.1 where API Services are provided by Skyscanner to the Customer, access and use the API Services and Travel Data only in connection with its API Key and shall keep the API Key confidential at all times;

3.2.2 be permitted to amend or tailor the look, feel, form, format or appearance of the Travel Data, provided that under no circumstances shall the Customer amend or alter any cost or price details, notices of authorship, trade marks, business names, logos or other designations of origin in the Travel Data;

3.2.3 not access, scan, copy, index or in any way exploit any underlying data, code, content or other material provided by Skyscanner in conjunction with the API Services;

3.2.4 not modify, adapt, translate, reverse engineer, disassemble or decompile the Affiliate Partner Services or circumvent any technological protections embodied therein, or attempt to reconstruct, identify or discover any source code, except and only as expressly permissible by law;

3.2.5 not cache, resell or repackage the API Services or Travel Data;

3.2.6 ensure that all travel bookings made by End-Users accessing the Travel Data (in whatever format) are concluded between End-Users and Skyscanner's Travel Partners via the Skyscanner deeplink mechanism and not via any intermediary, whether for commercial gain or otherwise;

3.2.7 ensure that any Travel Data displayed on the Customer Site is accompanied at all times by the "Powered by Skyscanner" hyperlink mark in accordance with Skyscanner instructions;

3.2.8 notify Skyscanner in writing in the event of any material change to the Customer Integration.

3.3 To the extent that Skyscanner is providing the Customer with the Widget Services, the Customer shall:

3.3.1 not access or in any way exploit any underlying data, code, content or other material provided by Skyscanner in conjunction with the Widget Services;

3.3.2 not combine or bundle the Widget Services (or any part of the Widget Services) with other data, information or content;

3.3.3 must not charge End-Users (whether directly or indirectly) for the use of the Widget Services;

3.3.4 not remove, alter, tamper with or in any way change the Widget Services, including the Skyscanner Link and the Consumer Link;

3.3.5 not (and must not authorise others to) copy, distribute, communicate to the public, edit, alter, sell, rent, lend or otherwise use the Widget Services other than as permitted in accordance with this Agreement;

3.3.6 shall not, where the Widget Services includes predictive or analytic content, deceive or attempt to mislead End-Users as to the nature of the Travel Data being displayed, for example by implying that an average or predicted price is live or bookable.

3.4 To the extent that Skyscanner is providing the Customer with the Referral Marketing Services, the Customer shall:

- 3.4.1 only use content that is relevant to the market at which the Customer Site or service is aimed e.g. content aimed at one market should not appear on a Customer Site that is aimed at a different market;
- 3.4.2 not engage in brand pay-per-click traffic (including mistyped keywords, domains, or variations of the Skyscanner Marks, or any type of advertising that uses the Skyscanner trademark or any variation of the Skyscanner Marks) bidding or retargeting campaigns;
- 3.4.3 not refer traffic to Skyscanner from toolbars, extensions, and plug-ins unless they have first been validated and approved by Skyscanner in writing;
- 3.4.4 not use disruptive ad formats (like pop up banners), cookie stuffing, toolbars and browser extensions, bots or any other fraudulent activity that is not related to a genuine End-User;
- 3.4.5 send traffic to the last transitional page on a Travel Partner's website and which must land on a page that is not automatically redirected;
- 3.4.6 not refer traffic to Skyscanner from non-transparent Customer Sites, performance agencies and/or subnetworks unless these have been approved in advance by Skyscanner in writing;
- 3.4.7 not work with Cashback Sites if Customer is part of a sub-network;
- 3.4.8 not refer traffic to Skyscanner from unavailable, incomplete, broken, empty pages or pages that in Skyscanner's sole opinion do not guarantee a satisfactory experience for End-Users; and
- 3.4.9 not promote "error fares" from the Customer Site, being fares that are offered by Travel Partners in error and are which are not available or unlikely to be honoured.
- 3.5 In the event that the Customer breaches any part of this clause 3, Skyscanner may suspend the relevant Affiliate Partner Service and/or withhold or reverse the Customer Payment.

4. REVENUE

- 4.1 Skyscanner will designate from time to time which Revenue Model will be used to calculate the Customer Payment payable to each Customer.

4.2 Skyscanner shall use its click-through referral tracking systems to monitor the number of End-Users accessing Travel Data on or from the Customer Site, including in particular the number of End-User Clicks, Bookings and Conversions, and to calculate the Click Through Revenue, Redirect Revenue or the Revenue per Stay generated by Skyscanner, as applicable to the Customer. Any portion of the End-User Clicks, Bookings or Conversions which Skyscanner (acting reasonably) identifies as Invalid Transactions will not count toward the Customer Payment. For the avoidance of doubt if no revenue is generated by Skyscanner for a particular End-User Click, Booking, Conversion or other type of transaction, such transaction will not be used in calculating the Customer Payment.

4.3 Skyscanner shall provide the Customer with access to an online portal which will detail the Customer's activity and the Customer Payment payable (subject to the terms of this Agreement) by Skyscanner to the Customer in respect of the immediately preceding month.

4.4 On a monthly basis, the Customer shall forward an invoice for the Customer Payment payable in line with the online portal referred to in clause 4.3. Skyscanner shall pay any such undisputed invoice within 30 days of receipt, subject to (i) the total amount of Revenue, using the relevant revenue model applicable to such Customer in that month is not less than the Customer Payment in that month; and (ii) the Customer having complied in full with the terms of this Agreement;

4.5 All sums payable in accordance with this clause shall be made in Euros or such other currency as may be agreed between the Parties and shall be exclusive of any applicable taxes. Each Party shall account to the relevant authorities for any taxes, insurance, contributions and other levies for which that Party is liable.

4.6 Payment of any sums by Skyscanner under this Agreement shall be without prejudice to any claims or rights which Skyscanner may have against the Customer and shall not constitute any admission or waiver by Skyscanner of any of the Customer's obligations.

4.7 Skyscanner may change the Customer Payment or the Revenue Model applicable to the Customer on giving at least one days' notice to the Customer via the online portal.

4.8 Skyscanner may change its payment terms as set out in clause 4.4, above, on giving the Customer at least seven days' notice.

5. CONFIDENTIALITY

5.1 Each Party undertakes to keep the other Party's Confidential Information confidential and shall not use or disclose such Confidential Information except for the purpose of exercising or performing its rights and obligations under this Agreement.

5.2 Each Party may disclose the other Party's Confidential Information to its employees, officers, representatives or advisers who need to know such information for the purposes of carrying out the Party's obligations under the Agreement and as may be required by law, court order or any governmental or regulatory authority provided that, to the extent it is legally permitted to do so, the Party which is required to make such a disclosure gives the other Party as much notice of this disclosure as possible.

5.3 Confidential Information shall not include any information which was in the lawful possession of the receiving Party prior to its first receipt from the disclosing Party; or received independently by the receiving Party in good faith from a third party; or is or becomes (through no act or failure to act of the receiving Party) public knowledge.

5.4 Neither Party may issue a press release regarding the Agreement without the prior written consent of the other Party.

6. DATA PROTECTION

6.1 Notwithstanding any other provision of this Agreement, in exercising their rights and performing their obligations under this Agreement, the Parties shall, to the extent necessary, at all times comply with all applicable data protection and privacy laws or regulations in force from time to time in the United Kingdom and, to the extent applicable, the EU, including: the UK GDPR (as defined in section 3(10), as supplemented by section 205(4) of the Data Protection Act 2018); the Data Protection Act 2018; the General Data Protection Regulation ((EU) 2016/679) (the 'EU GDPR'); and any applicable legislation relating to data protection in any other relevant jurisdiction (altogether, the 'Data Protection Legislation'). The Parties further shall not do or omit to do anything which has the effect of placing the other Party in breach of the Data Protection Legislation.

6.2 Each of the Parties acknowledges that one Party will regularly disclose to the other Party personal data (as defined in the EU GDPR) collected by the disclosing Party. Each of the Parties further acknowledges that each Party shall act as independent controllers in respect of any personal data disclosed under this Agreement. The Parties further agree that the standard contractual clauses (excluding those described as optional in the decision) set out in of the European Commission decision 2004/915/EC (currently available at <https://eur-lex.europa.eu/legal-content/EN/TXT/?uri=CELEX%3A32004D0915>) shall apply with respect to any transfers of personal data which may require them under the Data Protection Legislation.

6.3 Each of the Parties shall comply with all the obligations imposed on a controller under the Data Protection Legislation, and in particular the Customer shall ensure it processes the personal data only for the Permitted Purpose.

7. INTELLECTUAL PROPERTY RIGHTS

7.1 The Customer acknowledges and agrees that all rights, titles and interests, including without limitation all Intellectual Property Rights, associated with the Affiliate Partner Services, Travel Data and the Skyscanner Site are owned by or licensed to Skyscanner, and that the Customer shall not acquire any rights, titles, or interests in or to any Intellectual Property Rights associated with the Affiliate Partner Services, Travel Data, the Skyscanner Marks and/or the Skyscanner Site, which shall include any Intellectual Property Rights that are similar to the Skyscanner Marks.

7.2 Skyscanner grants to the Customer a limited non-exclusive, non-transferable licence (without the right to sub-license) to use the Skyscanner Marks as necessary in order to comply with the Customer's obligations under clause 3.2.7, provided that the Customer agrees that any goodwill accrued from its use of the Skyscanner Marks shall vest in Skyscanner.

7.3 Skyscanner acknowledges that the Customer owns or has licence to use all Intellectual Property Rights in the Customer Brands and any content on the Customer Site, excluding Travel Data.

7.4 Notwithstanding any other provision of this Agreement, the Customer hereby grants Skyscanner and each of the Skyscanner Group Companies a non-exclusive royalty-free licence for the duration of this Agreement to use and copy the Customer Brands in connection with providing the Affiliate Partner Services or as otherwise may be required by Skyscanner in order to comply with this Agreement.

8. WARRANTIES AND INDEMNITY

8.1 Skyscanner warrants that it has full power and authority to enter into this Agreement but makes no other warranty of any kind, whether express, implied, statutory or otherwise, including without limitation warranties of merchantability, fitness for a particular use, and non-infringement and, in particular, does not warrant that either the Affiliate Partner Services or Travel Data: (i) will meet all of the Customer's requirements; (ii) is accurate, complete or up to date; (iii) will always be available; or (iv) is secure or is free from errors, faults or defects.

8.2 The Customer warrants and undertakes to Skyscanner and to the Skyscanner Group Companies that (i) it has full power and authority to enter into this Agreement; (ii) the Customer Site do not and shall not contain any content or material which may reasonably be considered to be obscene, defamatory, harassing, offensive or malicious, or which infringes any third party rights or otherwise does not comply with all applicable laws or regulations; (iii) the Customer Brands do not and shall not infringe the Intellectual Property Rights of any third party; (iv) it shall at all times comply with all applicable laws, statutes, regulations and codes relating to anti-bribery and anti-corruption including but not limited to, the Bribery Act 2010 ("**Anti-Bribery Laws**") and that it shall

not do, or omit to do, any act which will lead to Skyscanner being in breach of any of the Anti-Bribery Laws.

8.3 The Customer warrants that the Customer Brands and the Customer domain names and meta-tags do not and shall not at any time contain any of the Skyscanner Marks. The Customer further warrants that it shall not purchase any domain name, keyword, search term or other right, or otherwise contract with a third party, to exploit any Skyscanner Marks, for the purpose of causing the Customer Site to appear as a search result or for any other reason.

8.4 The Customer hereby agrees to indemnify and keep Skyscanner and the Skyscanner Group Companies fully and effectively indemnified from and against all Loss it suffers arising out of any breach of the Customer's warranties in clauses 7.2 to 7.3 or the Customer's use of the Affiliate Partner Services and Travel Data.

9. LIMITATIONS OF LIABILITY

9.1 The Customer acknowledges and agrees that: (i) the Affiliate Partner Services are provided 'as is' and that as Skyscanner obtains the Travel Data from third party data providers, the availability and accuracy of Travel Data is wholly dependent upon such third party data providers, and consequently, whilst Skyscanner shall endeavour to check the accuracy of such data periodically, Skyscanner shall not be responsible for the non-availability or inaccuracy of any Travel Data; (ii) its use of the Affiliate Partner Services is entirely at its own risk; and (iii) owing to the nature of the Internet and the fact that the Customer's access to the Affiliate Partner Services Service involves functionality outside Skyscanner's control, Skyscanner is not responsible for any technical problems that the Customer may experience with the Affiliate Partner Services or Travel Data.

9.2 Except for damages to third parties arising out of wilful or grossly negligent breaches of confidentiality under clause 4, neither Party will be liable for any indirect, special, incidental, consequential, exemplary or punitive damages, nor for damages for lost data, lost profits or costs of procurement of substitute goods or services, however caused and under any theory of liability, including but not limited to contract or tort (including product liability, strict liability and negligence), and whether or not such Party was or should have been aware or advised of the possibility of such damage and notwithstanding the failure of essential purpose of any limited remedy stated herein.

9.3 Subject to clauses 9.4 and 9.5, Skyscanner's annual (calendar year) aggregate liability arising out of or in relation to this Agreement shall not exceed the greater of: (i) £5000; or (ii) the Customer Payment paid or payable by Skyscanner to the Customer under this Agreement in the calendar year in which the liability arose.

9.4. Nothing in this Agreement will limit either Party's liability for: (i) death or personal injury caused by its negligence; (ii) loss caused by fraud or fraudulent misrepresentation; or (iii) any loss which by law cannot be excluded or limited.

9.5 Subject to clause 9.4, Skyscanner does not accept any liability, and shall not be liable, for: (i) any inaccuracies or omissions in the content of the Affiliate Partner Services or the Travel Data; or (ii) any loss, damage, cost or expense of any kind incurred by the Customer arising in connection with its access to, use of, or inability to use, the Affiliate Partner Services, the Travel Data or any content contained in them, and the Customer hereby releases Skyscanner from all such liability.

10. TERM, TERMINATION AND SUSPENSION

10.1 The Agreement will commence on the Effective Date and continue in force until it expires or is terminated in accordance with this Agreement.

10.2 Either Party may terminate this agreement immediately if: (i) the other Party commits a material breach of any of its obligations under this agreement which are not capable of remedy; or (ii) the other Party committed a material breach of any of its obligations under this agreement which is capable of remedy but which has not been remedied within a period of thirty (30) days following receipt of written notice to do so; or (iii) there is an Insolvency Event.

10.3 Notwithstanding any other provision to the contrary elsewhere in this Agreement, the Customer acknowledges and agrees that the Affiliate Partner Services are provided to the Customer in Skyscanner's absolute discretion and that Skyscanner may at any time it deems necessary and without notice suspend the Customer's access to the Affiliate Partner Services, or throttle, switch off or otherwise limit the Travel Data that can be accessed using or is displayed via the Affiliate Partner Services (including to reflect requirements of its third party data providers, such as where an airline partner of Skyscanner requests immediate removal of data provided by or relating to that airline).

10.4 In respect of API Services only:

10.5.1 the Agreement will continue for a period of 12 months from the Effective Date (the '**Initial Term**'). Subject to Clauses 10.2, 10.3 and 10.5.2, upon the expiry of the Initial Term, the Agreement will thereafter automatically renew for further successive periods of 12 months unless 60 days' prior written notice is given by the Customer to Skyscanner of its intention not to renew;

10.5.2 Skyscanner may terminate this Agreement (i) immediately upon written notice to the Customer in the event of a breach of clause 3.1 or (ii) in its absolute discretion giving 3 months' prior written notice to the Customer.

10.3 In respect of Widget Services:

10.3.1 Skyscanner may in its absolute discretion immediately on giving written notice terminate or suspend the Customer's right to use the Service without notice at any time, without incurring any liability whatsoever.

10.3.2 The Customer may terminate the Widget Services in its absolute discretion immediately at any time by removing the relevant widget from the Customer Site.

10.4 In respect of Referral Marketing Services, Skyscanner or the Customer may terminate the Referral Marketing Services at any time on written notice.

10.5 For the purposes of this clause 10 "in writing" includes by email.

11. CONSEQUENCES OF TERMINATION

11.1 Immediately upon termination of this Agreement: (i) all license rights granted herein shall terminate; (ii) each Party shall return to the other Party, or destroy and certify the destruction of, all Confidential Information of the other Party; and (iii) the Customer shall immediately cease using the Data Service and delete all software, data, content and information concerning the Affiliate Partner Services and Travel Data from the Customer's systems and, where requested by Skyscanner, confirm in writing that it has done so.

11.2 In the event of any termination or expiration of this Agreement for any reason, clauses 1, 4, 5, 6, 7, 8, 9, 11.1, 14.1, 14.2, 14.4, 14.7 and 14.9 shall survive termination. Neither Party shall be liable to the other Party for damages of any sort resulting solely from terminating this Agreement in accordance with the Agreement.

12. LEGAL REMEDIES

12.1 The Customer acknowledges that the unauthorised use of the Affiliate Partner Services may result in irreparable damage and injury to Skyscanner and/or the Skyscanner Group Companies and/or its affiliates or licensors for which money damages would be inadequate. Consequently, in the event of such unauthorised use, Skyscanner, the Skyscanner Group Companies and/or licensors (as applicable) shall have the right, in addition to any other legal remedies available to them, to seek an immediate injunction against the Customer prohibiting any further use of the Affiliate Partner Services.

12.2 Nothing in the Agreement shall be interpreted to limit the remedies available pursuant to statutory or other legal authority that Skyscanner, the Skyscanner Group Companies and/or licensors may have.

13. THIRD PARTY RIGHTS

13.1 Subject to clauses 13.2 and 13.3, this Agreement is made for the benefit of the Parties and (where applicable) their successors and permitted assigns, and is not intended to benefit or be enforceable by anyone else.

13.2 In the event of any negligence or breach of this Agreement by the Customer which results in Loss being suffered by any Skyscanner Group Company, the Customer hereby acknowledges that the claim of the Loss can be: (i) assigned to Skyscanner; and (ii) recovered by Skyscanner or a Skyscanner Group Company from the Customer.

13.3 Skyscanner or any Skyscanner Group Company will be able to recover any Loss from the Customer pursuant to this Agreement subject to any limits on the Customer's liability contained in this Agreement. For this purpose, any Loss suffered by Skyscanner Group Companies will not be treated as being indirect, special, incidental, consequential, exemplary or punitive because it has been suffered by a Skyscanner Group Company and not by Skyscanner directly.

14. MISCELLANEOUS

14.1 All notices required to be served under or in connection with the Agreement must be in writing and, save where expressed to be permitted to be delivered by email, delivered personally or sent by prepaid recorded post to the postal addresses set out on www.skyscanner.net, and addressed to the Chief Commercial Officer and Chief Legal Officer. Any notice that is served under the Agreement shall be deemed to be received upon receipt when delivered by hand during business hours, or by prepaid recorded post.

14.2 Neither Party shall be entitled to assign, sub-contract or sub-licence any of its rights or obligations under this Agreement in whole or in part, without the prior written consent of the other Party (such consent not to be unreasonably withheld) except that Skyscanner may at any time assign, novate or sub-contract any of its rights and/or obligations under this Agreement to any Skyscanner Group Company.

14.3 This Agreement shall not be amended except in writing signed by a duly authorised representative of each Party.

14.4 If any provision of this Agreement or any variation thereof is determined to be invalid and unenforceable to any extent, that provision shall be severed from the body of other provisions and these provisions shall continue to the fullest extent permitted by law.

14.5 No failure or delay by a Party to exercise, or partial exercise by a Party of any right or remedy by law shall constitute a waiver of that or any other right or remedy.

14.6 This Agreement may be executed and delivered in any number of counterparts, each of which is an original and which, together, have the same effect as if each Party had

signed the same document. The Parties agree that in executing the Agreement electronic signatures shall be as valid as an original signature.

14.7 Nothing in this Agreement is intended to, or shall be deemed to, establish any partnership or joint venture between any of the Parties, constitute any Party the agent of another Party, nor authorise any Party to make or enter into any commitments for or on behalf of any other Party except as expressly provided in this Agreement.

14.8 This Agreement constitute the entire agreement between the Parties and supersede all previous terms and understandings between them, whether written or oral, relating to their subject matter.

14.9 Each party acknowledges and agrees that by clicking-through acceptance of this Agreement it is submitting an authorised electronic signature and entering into a legally binding contract. Further, each party hereby waive any rights or requirements under any applicable statutes, regulations, rules, ordinances or other laws in any jurisdiction which require an original signature or delivery or retention of non-electronic records, or to payments or the granting of credits by other than electronic means.

14.10 This Agreement and any dispute or claim arising out of or in connection with it or its subject matter shall be governed by and construed in accordance with the law of England and Wales and the Parties irrevocably agree that the courts of England and Wales shall have exclusive jurisdiction to settle any dispute or claim that arises out of or in connection with this Agreement or its subject matter.